



FOURTH JUDICIAL DISTRICT - PROVO DISTRICT COURT
UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff,	MINUTES PRELIMINARY HEARING
vs. TYLER JAMES ROBINSON, Defendant. Custody: Utah County Jail	Case No: 251403576 FS Judge: TONY F GRAF JR Date: July 9, 2026

PRESENT

Prosecutor: CHRISTOPHER BALLARD

Prosecutor: JEFFREY GRAY

Prosecutor: CHAD GRUNANDER

Prosecutor: LAUREN HUNT

Prosecutor: RYAN MCBRIDE

Prosecutor: DAVID STURGILL

Defendant Present

The defendant is in the custody of the Utah County Jail

Defendant's Attorney(s): KATHRYN NESTER

Defendant's Attorney(s): DEFENDER PUBLIC

Defendant's Attorney(s): STACI VISSER

Clerk: treenah

DEFENDANT INFORMATION

Date of birth: April 16, 2003

Tape Number: 48 FTR/Webex Tape Count: 9:29-5:27

CHARGES

1. AGGRAVATED MURDER - 1st Degree Felony
2. FELONY DISCHARGE OF FIREARM - CAUSING SERIOUS BODILY INJURY - 1st Degree Felony
3. OBSTRUCTION OF JUSTICE - CAPITAL/FIRST DEGREE FELONY CONDUCT - 2nd Degree Felony
4. OBSTRUCTION OF JUSTICE - CAPITAL/FIRST DEGREE FELONY CONDUCT - 2nd Degree

Felony

5. TAMPERING WITH A WITNESS - 3rd Degree Felony

6. TAMPERING WITH A WITNESS - 3rd Degree Felony

7. VIOLENT OFFENSE COMMITTED IN PRESENCE OF A CHILD - Class A Misdemeanor

HEARING

9:29 This matter comes before the court for the fourth day of a preliminary hearing. Court welcomes counsel and parties. Counsel make their appearance. Attorneys Richard Novak and Michael Burt appears pro hac vice for the defendant.

Court addresses counsel on the overnight filing by Mr. Neiman.

9:35 Mr. Ballard addresses the court on the filing.

Mr. Novak addresses the court on the filing.

9:37 Mr. Judd addresses the court.

Mr. Ballard addresses the redaction made to the video of exhibit #16.

Mr. Novak responds and discussion ensues.

Court gives instructions as to redactions.

9:49 Mr. Ballard addresses the court and requests clarification regarding video/exhibit #16.

9:53 Mr. Novak responds to the redactions. Mr. Ballard responds.

9:56 Court gives findings as to the publishing of exhibit #16.

10:02 Mr. Ballard addresses the court on the publishing of omissions.

10:10 Mr. Novak responds and presents argument.

10:15 Mr. Judd addresses the court on publication of exhibit.

10:19 Mr. Neiman addresses the court on publication.

10:28 Mr. Judd responds.

10:28 Mr. Neiman addresses court.

10:29 Court gives ruling regarding publication of redacted exhibit #16. Court will receive exhibit 16 and it may be published . Exhibit is marked, identified, offered, and received.

10:33 Mr. Ballard addresses the court.

10:34 Court takes recess.

10:55 Court reconvenes.

Ms. Hunt addresses the court and request more time. The court grants.

10:56 Court takes recess.

11:12 Court reconvenes.

Ms. Hunt addresses the court and recalls Scott Davis to the stand. He is reminded he is still under oath.

Ms. Hunt moves to publish exhibit #16. Exhibit is published and played.

11:37 Ms. Hunt continues with direct examination and moves to admit exhibit 16.1, 16.2, 16.3, and 16.4. Court notes the standing objection from defense.

Court over rules the objection. Exhibits are marked, identified, offered, received and published.

Witness is excused.

12:23 Court takes a recess.

1:34 Court reconvenes.

The State calls Jennifer Faumuina. She is reminded she is still under oath.

Mr. McBride continues with direct examination.

Mr. McBride moves to admit exhibits 35, 10, 10.1, 10.2, and 10.3. Court notes the standing objection from defense.

Court over rules the objection. Exhibits are marked, identified, offered, received and published.

Mr. McBride moves to admit exhibits 19, 20, 21, and 22. Mr. Court notes the standing objection from

defense.

Court over rules the objection. Exhibits are marked, identified, offered, received and published. .

Mr. McBride moves to admit exhibits 23, 25, 24, 30, 32, 33, and 34.

Court notes the outstanding objection from defense.

Court over rules the objection. Exhibits are marked, identified, offered, received and published.

Court takes recess.

3:04 Court reconvenes.

Mr. Burt crosses Ms. Faumuina. Witness is excused.

3:16 Mr. Grunander addresses the court on exhibits. Court confirms exhibits.

State rests. Counsel side-bar.

3:20 Mr. Neiman addresses the court and request all exhibits be shown in court and request that exhibit 12.1 be viewed and published in the courtroom.

3:21 Mr. Grunander responds.

3:32 Mr. Burt responds.

3:25 Court addresses counsel and states it will take the matter under advisement and will allow counsel to revisit the issue tomorrow.

3:26 Mr. Burt calls Samantha Carner, she is placed under oath and testifies as directed.

Mr. Burt moves to admit exhibits 11, 6 and 28. The State objects.

Court over rules the objection. Exhibits are marked, identified, offered, received and published.

4:40 Mr. McBride crosses.

4:57 Mr. Burt redirects.

5:04 Mr. McBride re-crosses.

Witness is excused.

5:12 Ms. Nester addresses the court on projection of tomorrow's hearing.

5:12 Mr. Grunander addresses the court and discussion ensues.

Counsel request that they be allowed to brief the bindover.

Court will allow counsel to brief the issue before making findings on the bindover.

The court addresses Mr. Neiman and victim and will allow the playing of exhibit #12.1 but it will not be broadcast.

Mr. Nester objects.

Court overrules the objection. Exhibit may be played and the end of the hearing tomorrow.

5:27 Court is adjourned for the day.

Written statements and witness testimony are submitted as probable cause at the preliminary hearing.

End Of Order - Signature at the Top of the First Page